

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Clark S. Cheney
Chief Administrative Law Judge**

In the Matter of

**CERTAIN SEMICONDUCTOR DEVICES,
PRODUCTS CONTAINING SAME, AND
COMPONENTS THEREOF**

Investigation No. 337-TA-1500

JOINT DISCOVERY STATEMENT

Complainant GlobalFoundries U.S. Inc. (“GlobalFoundries” or “Complainant”) and Respondents Tower Semiconductor Ltd., Tower Partners Semiconductor Co., Ltd., Tower Semiconductor Italy S.r.l., Tower US Holdings, Inc., Tower Semiconductor San Antonio, Inc., Tower Semiconductor NPB Holdings, Inc., Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC (collectively “Tower” or “Respondents”) (collectively, “the Parties”) submit this Joint Discovery Statement as required by Order No. 2: Notice of Ground Rules; Order Setting Date for Submission of Joint Discovery Statement.

1. Discovery Statement Checklist

The Parties’ positions on the applicable topics of the Discovery Statement Checklist are shown in the attached Exhibit A. The Parties are continuing to meet and confer and may modify agreed-upon procedures accordingly.¹

2. Joint Electronic Discovery Submission

The Parties’ positions on the applicable topics of the Joint Electronic Discovery

¹ This Investigation is at an early stage, and the Parties are in regular communication. The Parties’ positions may evolve as the Investigation progresses and the Parties will update the CALJ of their respective positions as appropriate.

Submission are shown in the attached Exhibit B.

3. The Parties' proposed limitations and procedures for fact and expert discovery

a. Any recommendations for limiting the production of documents, including electronically stored information.

The Parties' recommendation for limiting the production of documents, including electronically stored information, is described in the Parties' Joint Electronic Discovery Submission and [Proposed] Order (attached as Exhibit B).

b. Any recommendations for limiting fact depositions, whether by numbers or days of depositions.

The Parties agree that the default Commission practice in 19 C.F.R. § 210.28(a) should apply in this Investigation. The Parties further agree that a deposition day presumptively will be limited to 7 hours of testimony per day in accordance with 19 C.F.R. § 210.28(b), absent further agreement by the Parties. Foreign language depositions requiring a translator will be presumptively limited to 14 hours of testimony total, which may extend into a second day for the amount of time exceeding the 7 hour daily limit. Depositions in English will generally be limited to a single day absent agreement by the Parties. If a Party anticipates needing more than a single day, it must notify the other Party at least seven (7) days in advance where possible. The Parties reserve the right to seek additional deposition hours of corporate designees commensurate with the topics for which the corporate designee has been designated as set forth in Section f below. The Parties also agree that, if a witness will be deposed both in their personal capacity and on behalf of a party, both depositions will be conducted together, absent prior agreement. Nothing here shall be construed as a waiver of any party's right to seek relief from the Chief Administrative Law Judge ("CALJ") pertaining to the number or the duration of any witness for good cause shown.

c. A protocol for electronic discovery, including a brief description of any disputes regarding the scope of electronic discovery.

The Parties recommend a protocol for electronic discovery as described in the Parties' Joint Electronic Discovery Submission and [Proposed] Order (attached as Exhibit B). The Parties have not yet had any disputes regarding the scope of electronic discovery.

d. Whether the parties recommend that expert discovery precede or follow any summary determination practice.

The Parties respectfully request that the deadline for expert reports precede the deadline for filing summary determination motions, if practicable, but note that the Parties remain free to file motions for summary determination at any time before the deadline set in the Procedural Schedule pursuant to 19 C.F.R. § 210.18(a).

e. Whether the parties agree to allow depositions, preceding the hearing, of hearing witnesses not already deposed.

The Parties agree that, absent agreement between the Parties, witnesses not included on a party's tentative witness list may only testify at the hearing where leave is granted by the CALJ upon a showing of good cause for the omission of the witness from a party's tentative witness list. The Parties agree that all Parties should be given an opportunity to depose all hearing witnesses during the applicable discovery period and that the Parties must make timely disclosure of all hearing witnesses. Witnesses who were not previously deposed and were not included on a tentative witness list but whom the Parties agree may testify at the hearing, or whom the CALJ permits to testify at the hearing, may be deposed by the opposing party preceding the hearing, regardless of whether fact discovery has closed and regardless of whether these additional depositions would exceed the limitations on depositions imposed by the Commission Rules or prior agreement of the Parties. Every effort shall be made to schedule such deposition at a time and place that minimizes disruptions to the Parties' preparations for the hearing.

f. Whether the parties agree to conduct depositions in a particular location.

The Parties agree that reasonable efforts will be made to schedule depositions at a time and location that is reasonably convenient for the witness. The Parties will make reasonable efforts to coordinate the scheduling of foreign depositions to avoid the need for multiple trips. Depositions will take place in-person by default, but the Parties may agree to remote depositions if practicable and permissible under all applicable laws and regulations. The requesting party is responsible for arranging the location of the deposition in the location specified by the producing party. For depositions taken by videoconference technology, counsel representing the witness may be present with the witness, and must also appear by video, whether in the same room as the witness or not.

The Parties agree that to the extent the deposition proceeds in person, for a fact witness testifying on behalf of a party, employed by a party, or within the control of a party, the Parties agree to conduct the deposition in a location convenient to the witness. For any party witness located outside of the United States, the Parties agree to conduct the deposition at a location convenient to the witness as reasonably determined by the producing party.

Complainant's Position: For any party witness that does not allow depositions under the rules of the ITC or requires additional approvals, the producing party agrees to make the witness available in another jurisdiction that is reasonably accessible and convenient to the witness and the parties.

Respondents' Position: For any party witness that resides in a location that does not allow depositions under the rules of the ITC or requires additional approvals, the parties will meet and confer in good faith to determine whether the needed approvals can be expedited and/or the witness can be made available in another jurisdiction that is reasonably accessible and convenient to the witness and the parties.

For any third-party witness, the Parties agree to conduct any deposition at a location convenient to the witness as reasonably determined by the witness. Depositions will start at 9:00 AM based on the witness's local time, unless otherwise agreed.

For expert witnesses, the Parties agree to avoid conducting simultaneous depositions unless the circumstances leave no other alternative. The Parties agree to conduct the deposition in a location convenient to the expert witness within the United States, except where the expert witness is abroad and a deposition in the United States would cause undue hardship or the Parties otherwise agree, in which case the deposition may be taken abroad or by videoconference.

For a non-party witness, the Parties agree to conduct the deposition in a location reasonably agreeable to the non-party witness. The first requesting party is responsible for arranging the location of the deposition.

g. Whether the parties recommend that the ALJ set a date before which contention interrogatory responses need not be provided.

The Parties agree that they shall respond to interrogatories as required by the Commission Rules and the Ground Rules (Order No. 2), as modified by the Procedural Schedule entered in this Investigation or any extension of time to which the Parties may agree or the CALJ may order. The Parties propose that the CALJ set two deadlines for exchanging initial contentions in response to contention interrogatories (one date for issues upon which a party bears the burden of proof and one date for all other issues) and two deadlines for exchanging final contentions in response to such interrogatories (one date for issues upon which a party bears the burden of proof and one date for all other issues), as contemplated by Ground Rules 2 and 4.4.2. The Parties will agree on a date for the substantial completion of technical documents to occur before the deadline for the exchange of initial contention interrogatories. Contention responses to discovery requests do not need to be provided in advance of the deadline for initial contentions. These deadlines do not

excuse the Parties from producing information or documents responsive to discovery requests and located by the producing party prior to these contention interrogatory deadlines. The Parties stipulate and agree that a party may supplement its final contentions after the deadline up and through the close of fact discovery based on discovery that the party received after the deadline. The Parties agree that the verifications of interrogatory responses shall be served no later than five (5) business days before the deposition of the individual verifying the response and no later than fifteen (15) days after the close of fact discovery.

h. Whether the parties agree that the provisions of FRCP 26(b)(4)(B) and (C) relating to expert communications apply.

The Parties agree the limitations of Federal Rule of Civil Procedure 26 shall govern the discovery and disclosure of expert testimony, communications, and materials in this matter. Nothing in this paragraph shall be construed (1) to preclude a party from inquiring into the facts, data, and assumptions considered in forming an expert's opinions, and/or (2) as a waiver of the attorney-client privilege, the common-interest privilege, the work product doctrine, or any other applicable privilege, immunity, or protection. The Parties agree that all communications between a Party's counsel and a retained expert, a retained expert and their staff or consultants, one retained expert and another retained expert, and all materials generated by a retained expert and/or their staff and consultants with respect to that person's work, including all drafts of such materials, are exempt from discovery, unless those materials and communications were relied upon by the expert in forming his or her opinions. The Parties agree that experts are responsible for ensuring that their staff members comply with the Protective Order, so non-testifying staff members supporting experts that are employees of the same organization that employs the testifying expert need not separately sign letters agreeing to abide by the terms of the Protective Order.

Dated: May 14, 2026

Respectfully submitted,

/s/ Bert C. Reiser

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CERTIFICATE OF SERVICE

It is hereby certified that copies of the foregoing **JOINT DISCOVERY STATEMENT** were served on May 14, 2026 as follows:

The Honorable Lisa R. Barton Secretary to the Commission U.S. International Trade Commission 500 E Street, SW, Room 112 Washington, DC 20436	BY EDIS
The Honorable Clark S. Cheney Chief Administrative Law Judge U.S. International Trade Commission 500 E Street, SW, Room 317 Washington, DC 20436	By Email: Joseph.Speyer@usitc.gov
Stephen R. Smith COOLEY LLP 1299 Pennsylvania Ave., N.W. Suite 700 Washington, D.C. 20004 <i>Counsel for Respondents Tower Semiconductor Ltd., Tower Partners Semiconductor, Ltd., Tower Semiconductor Italy S.r.l., Tower US Holdings, Inc., Tower Semiconductor San Antonio, Inc., Tower Semiconductor NPB Holdings, Inc., Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC</i>	By Email: TowerITC@cooley.com

/s/ Erika J. Weinstein

Erika J. Weinstein

CLEARY GOTTlieb STEEN & HAMILTON LLP

EXHIBIT A

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JOINT DISCOVERY STATEMENT CHECKLIST

I. ISSUES TO BE LITIGATED

A. All Issues to Be Litigated

Based on information reasonably available at this early stage of the above-captioned Investigation, the Parties identify the following issues to be litigated.

1. Whether Complainant has standing;
2. Whether the Commission has subject matter jurisdiction over this Investigation;
3. Whether the Commission has personal jurisdiction over Respondents and *in rem* jurisdiction over the Accused Products;
4. Whether Complainant has proven that each Respondent has imported into the United States, sold for importation into the United States, and/or sold after importation in the United States at least one unit of each product Complainant accuses of infringement (“Accused Products”);
5. Whether Complainant has proven that each Respondent has committed unfair acts under Section 337(a)(1)(B) of the Tariff Act of 1930, as amended;
6. Whether any claim(s) of the Asserted Patents must be construed and, if so, how those claim(s) should be construed;
7. Whether Complainant has proven that Respondents’ Accused Products and/or the processes for making the Accused Products directly infringe one or more asserted apparatus/device claims of one or more of the Asserted Patents either literally or under the doctrine of equivalents;
8. Whether Complainant has proven that processes used by Respondents directly infringe one or more asserted method claims of one or more of the Asserted Patents either literally or under the doctrine of equivalents;
9. Whether Complainant has proven that Respondents indirectly infringe via inducement and/or contributory infringement;
10. Whether Respondents have proven that any Asserted Patent is invalid;
11. Whether a domestic industry, as defined by 19 U.S.C. §§ 1337(a)(3)(A)–(C), exists with respect to the Asserted Patents;
12. Whether Respondents have proven their affirmative defenses;

13. Whether Complainant is entitled to any remedy in this Investigation, and if so, the form and scope of any remedial order(s) to be issued should a violation of Section 337 be found;
14. The appropriateness and amount of any bond to be required during any Presidential review period; and
15. Whether the enforcement of any remedial orders issued in this Investigation would have an adverse impact on the public interest.

Additional legal issues may arise as discovery continues. The Parties reserve their rights to modify their positions on these points as discovery progresses and further information becomes available.

B. Identify specific proposals in which these issues can be narrowed to make the hearing more meaningful and efficient.

No stipulation with respect to the aforementioned issues has been agreed upon by the Parties at this time. The Parties agree to meet and confer throughout the Investigation to attempt to identify facts and issues for which stipulation is appropriate.

II. DESCRIPTION OF INFORMATION AND EVIDENCE THAT EACH PARTY INTENDS TO SUBMIT TO PROVE ITS OWN CASE

A. Complainant's Position

Complainant intends to submit evidence showing a violation of Section 337 with respect to each asserted claim of the Asserted Patents, including infringement by each Respondent and the existence of a domestic industry. Complainant also intends to submit evidence showing that it is entitled to a Limited Exclusion Order and permanent Cease and Desist Orders, and that a bond amount is appropriate during any Presidential review period. Complainant currently intends to introduce evidence in the form of documents, deposition testimony, expert witness testimony, expert reports, declarations, discovery responses, physical samples, and other relevant, non-privileged information, from the Parties and third-parties, generally relating to the issues identified in Section I(A). Complainant reserves the right to rely on any admissible evidence, whether

identified above or not, in support of its arguments on any disputed issue in this Investigation.

This Investigation is in the early stages, and Complainant reserves the right to modify or supplement this description as discovery is ongoing.

B. Respondents' Position

Respondents intend to submit evidence demonstrating that there has been no violation of Section 337. Respondents intend to submit evidence demonstrating non-infringement, invalidity, and a lack of domestic industry for each asserted claim of the Asserted Patents. Respondents also intend to introduce evidence regarding the appropriate remedy, if any, and that the appropriate bond amount is 0%. Respondents intend to introduce evidence in the form of documents, source code, deposition testimony, expert reports, expert testimony, discovery responses, and other relevant non-privileged information, including information from third-parties that relate to the issues identified in Section I(A) and any issues later identified. Respondents reserve the right to rely on any admissible evidence, whether identified above or not, in support of its arguments on any disputed issue in this Investigation.

This Investigation is in the early stages, and Respondent reserves the right to modify or supplement this description as discovery is ongoing.

III. DESCRIPTION OF THE SPECIFIC INFORMATION AND EVIDENCE THAT EACH PARTY WILL BE SEEKING FROM OTHER PARTIES AND THIRD PERSONS

A. Complainant's Position

Complainant has served each Respondent with initial interrogatories and requests for production seeking information and evidence relating to the issues identified in Section I(A) above. Complainant anticipates serving additional discovery requests on Respondents in accordance with the Commission Rules and Ground Rules—including additional interrogatories and requests for production, requests for admission, fact and/or expert depositions—on a variety of topics, and

anticipates applying for subpoenas to third-parties with information relevant to issues in dispute such as certain suppliers of Respondents and domestic industry. Complainant reserves the right to modify or supplement this description as discovery is ongoing.

B. Respondents' Position

Respondents have served initial interrogatories and requests for production on Complainant seeking evidence relating to the issues identified in Section I(A) above. Respondents anticipate that they will seek additional discovery from Complainant in the form of interrogatories, requests for production, requests for admission, and fact/expert depositions on a variety of topics. Respondents anticipate applying for third-party subpoenas to third-parties with information relevant to this Investigation, including third-parties with relevant information regarding prior art processes and products. Respondents reserve the right to modify or supplement this description in view of the fact that discovery has just started and remains ongoing.

IV. POSSIBLE LIMITATIONS ON DOCUMENT PRESERVATION

The Parties agree to take reasonable and proportional steps to preserve potentially relevant, discoverable forms of electronically stored information ("ESI") and other potentially relevant, discoverable documents. Consistent with Commission Rule 210.27(c), the Parties need not provide discovery of ESI from sources that are not reasonably accessible because of undue burden or cost. Thus, absent a showing of good cause, the Parties agree that the following sources need not be searched for documents and information responsive to the Parties' discovery requests: email communications; automated disaster recovery backup systems and/or disaster recovery backup tapes; RAM or temporary files; temporary internet files, history, cache, cookies, and other on-line access data; data in metadata fields that are updated automatically such as last-opened dates; data remaining from systems no longer in use that is unintelligible on the systems in use; residual, fragmented, damaged, permanently deleted, and unallocated data; legacy computer systems; audio

files; video files; server systems; network logs; personal digital assistants; mobile devices; cell phones; tablets; voicemails; USB flash drives, or the like; portable disks; voicemail systems; instant messaging conversations (*e.g.*, Skype, Slack, Google Chat, Microsoft Teams, etc.); and chat logs from tools powered by artificial intelligence (*e.g.*, OpenAI's ChatGPT, Google's Gemini, GitHub Copilot). The Parties shall meet and confer as to good cause on this issue.

Additional agreements on issues related to the production of ESI that have been reached by the Parties to date are outlined in the Parties' Joint Electronic Discovery Submission, attached as Exhibit B. A copy of any additional stipulations reached will be filed with the Chief Administrative Law Judge ("CALJ").

V. PRELIMINARY ISSUES THAT ARE LIKELY TO ARISE THAT WILL REQUIRE JUDICIAL INTERVENTION

At this stage, the Parties have not identified any preliminary issues likely to arise that will require judicial intervention. If such issues arise and the Parties are unable to resolve such issues through the meet-and-confer process, the Parties will seek the CALJ's assistance in resolving such dispute in accordance with the Ground Rules.

VI. IDENTIFICATION OF DISPOSITIVE ISSUES THAT SHOULD BE RESOLVED EARLY IN THE INVESTIGATION, AND SPECIFIC PROPOSALS FOR DISPOSITION OF SUCH ISSUES

At this stage, the Parties have not identified any dispositive issues that should be resolved early in the Investigation.

VII. IDENTIFICATION OF ISSUES AMENABLE TO STIPULATIONS

A. Electronic Service and Timing

Electronic service shall be the official form of service in this Investigation for all documents filed with the Commission, submitted to the CALJ, or that are otherwise served pursuant to Commission Rule 201.16 or the Ground Rules.

All discovery requests and responses and objections thereto will be served by electronic mail or secure file transfer in a searchable PDF format. For discovery requests, the Parties agree to serve native versions in Microsoft Word format. All documents produced pursuant to any discovery request shall be served by FTP, secure file transfer, or other similar secure electronic delivery method.

Service of any documents whose size totals more than ten megabytes (10 MB) shall be effected by any secure file transfer system, and shall be deemed served as of the time of service of an email notifying the served parties that the transfer is available and providing the necessary credentials to access the documents.

Only individuals permitted to access documents containing confidential business information (“CBI”) pursuant to the Protective Order will be included in email distribution addresses. The Parties agree that all documents delivered by email that contain CBI will be attached as password protected files. Aside from password protection, the Parties agree to not place any other restrictions on the documents’ properties (such as restricting access to print the document or restricting the ability to save the document in a new location). The Parties agree that password protection is not required for individual documents or materials containing CBI when served by secure FTP or other secure file sharing and transfer service, access to which is protected by a password.

If electronic production is not practicable, the producing party may choose to produce the things or documents via overnight mail or courier. In such case, the receiving party may select the location and attorney to which the producing party is to send its production. A cover letter disclosing the Bates range(s) of documents being produced shall accompany the production and shall be transmitted via electronic mail substantially at the time the hard-copy production is made.

Service of discovery requests and responses by 8:00 p.m. EST/EDT constitutes service on the day received. Discovery requests and responses sent by email after 8:00 p.m. EST/EDT will be considered served the next business day. Documents filed with the Commission shall be served on the other party as soon as practicable after filing, and in any event no later than 6:00 p.m. EST/EDT on the day filed. Notwithstanding the foregoing, the Parties agree that such materials sent on a Saturday, Sunday, or Federal legal holiday shall be deemed to have been served on the next business day.

To the extent that any letter briefs are submitted to the CALJ in accordance with Ground Rule 3.4, the Parties agree to submit such letter briefs and serve the other Parties by no later than 5:15 p.m. EST/EDT by the applicable deadline to submit such letter briefs.

B. Inadvertent Production of Privileged Material

The Parties agree that Commission Rule 210.27(e)(2) governs the inadvertent production of privileged information in this Investigation, including communications, information, documents, or materials protected by the attorney-client privilege, common-interest privilege, work product immunity, or any other applicable privilege or immunity and any inadvertent production shall not be deemed to constitute a waiver of any applicable privileges or protections in this Investigation or in any other related federal proceeding provided that the producing party notifies the receiving Party in writing promptly after discovery of such inadvertent production. In addition, if a receiving party receives materials that bear a legend or other marking indicating that the materials are subject to the attorney-client privilege, work-product protection, or other privilege or immunity that would otherwise attach to the document or information, and where it is reasonably apparent that the materials were produced or made available through inadvertence, the receiving party must refrain from examining the materials any more than is essential to ascertain if the materials are privileged, and shall immediately notify the producing party in writing that it possesses material that appears

to be privileged.

If a receiving party discloses any privileged information over which the producing party later asserts a privilege or immunity as described in the prior paragraph, such disclosure shall not be deemed a waiver of privilege or immunity (and no party will assert such a waiver). In such circumstances, after the producing party provides written notice designating such privileged information as within an applicable privilege or immunity, the receiving party shall cooperate in good faith to protect the applicable privilege or immunity with respect to the disclosed privileged information, including retrieval or destruction of all copies, to the extent possible.

C. Inadvertent Failure to Designate Documents

The Parties agree that the inadvertent failure to designate any materials produced during this Investigation as “Confidential Business Information” (“CBI”) will not be deemed to waive or prejudice any later claim as to its appropriate confidential nature, or to stop the producing party from designating such information as confidential at a later date, provided that the producing party notifies the receiving party in writing promptly after discovery of such inadvertent failure to designate. A receiving party shall not be in breach of the Protective Order for using undesignated material before the receiving party received notice of the inadvertent failure to designate. Newly designated CBI must be treated by the receiving party according to the new designation from the time the receiving party is notified in writing of the change in the designation. If material is designated as containing CBI subsequent to production or disclosure, the producing party shall reproduce the material with the correct designation. Upon receiving the material with the correct designation, the receiving party shall make reasonable efforts to return or securely destroy all copies that were not properly designated.

The Parties agree that deposition testimony may be retroactively designated as CBI (1) pursuant to the terms specified in this section if retroactively designated within ten (10) days of

the date of the deposition; (2) if the Parties consent; or (3) if the CALJ, Commission, or other body with authority so orders.

D. Format of Supplemental Discovery Responses

For ease of use, the Parties agree that supplemental discovery responses to a set of discovery will include all prior responses to that set of discovery, with the date of each supplemental response identified. In other words, responses to a given set of discovery will be made in a running document containing all prior responses, as opposed to supplementation in piecemeal fashion in separate documents. Notwithstanding the foregoing, exhibits or addenda to prior responses need not be reproduced in supplemental responses.

E. Retroactive Designation of Deposition Testimony

Deposition testimony may be retroactively designated as “Confidential Business Information” (1) if retroactively designated within ten (10) calendar days of the date of deposition; (2) if the Parties consent; or (3) if the CALJ, Commission, or other body with authority so orders.

F. Third-Party Discovery

A party shall serve upon the other parties all subpoenas served upon a third-party approximately contemporaneously with their service upon the third-party. The Parties agree that any third-party subpoena responses and/or document production received from a third-party shall be produced in its entirety in the format in which it was received within three (3) business days or less, where feasible. The Parties agree that they shall make best efforts to reproduce such third-party materials in fewer than three (3) business days when necessary, such as, for example, in the event such documents may be used in a deposition. The Parties agree that if a Party intends to depose a third-party, that Party will make a good faith effort to coordinate with the witness and the other Parties on the time, date, and location of the deposition.

G. Translations

In addition to the requirements of the Ground Rules, the Parties agree to produce any translations on which an expert relies and will produce any such translations relied upon by an expert no later than the day the expert report which relies on them is served.

H. Discovery Committee Meeting (“DCM”)

The Parties agree to circulate any agenda items by 5:00 PM EST/EDT the day before each DCM. Parties may only raise additional items during a DCM by agreement by all relevant Parties. Only those attorneys who have subscribed to the Protective Order may participate in the DCMs. Lead counsel for a party need not attend DCMs unless specifically requested by the other party to discuss specifically identified issues.

VIII. PROPOSED DISCOVERY LIMITATIONS

A. Limitations on types of discovery beyond those in the Commission Rules and applicable Ground Rules

The Parties do not propose any further limitations on types of discovery at this time beyond those in the Commission Rules, the applicable Ground Rules, and the agreements reached in this Joint Discovery Statement.

B. Limitations on scope of discovery

The Parties agree that discovery will proceed in accordance with the Commission Rules, the Ground Rules, the Procedural Schedule to be entered in this Investigation, the Parties’ Joint Electronic Discovery Statement, and the agreements reached in this Joint Discovery Statement, into matters that fall within the scope of the Commission’s Notice of Investigation.

C. Limitations on timing and sequence of discovery

The Parties agree to undertake good faith efforts to produce documents and respond to interrogatories before fact depositions commence. More specifically, the Parties agree to make a

good faith effort to produce responsive, non-privileged documents relevant to the designated topics for a corporate deposition or within the custody or control of any personal deponent no later than seven (7) calendar days before the scheduled deposition.

The Parties further agree to undertake good faith efforts to complete fact discovery before expert discovery begins, subject to any rulings on pending motions to compel.

The Parties propose that all remaining discovery proceed in accordance with the Commission Rules, the Ground Rules, and a Procedural Schedule to be set after the CALJ determines the appropriate target date.

a. Agreements to allow depositions of hearing witnesses named if not already deposed; and preservation depositions, foreign discovery, or other anticipated issues

The Parties incorporate by reference their proposals set forth in the Joint Discovery Statement concerning conduct of depositions.

b. Agreements to exchange certain information without the use of formal discovery

At this time, the Parties have not identified information appropriate for exchange without the use of formal discovery.

c. Agreements or limitations on discovery of electronically-stored information

The Parties agree that no email (including attachments) need be searched or produced unless good cause for their search and production can be shown. The Parties shall meet and confer as to good cause on this issue and shall also meet and confer regarding custodians and reasonable search terms if production of email is agreed to. To the extent an impasse is reached regarding whether good cause exists to search and produce email, the party seeking production of such email must seek assistance from the CALJ within five (5) business days of the impasse being reached, or the request is waived.

The Parties agree that no (a) voicemail, recorded telephone conversations, recorded audio and/or video conferences, instant messages, text messages, or calendar items, or (b) materials that may be archived and/or retained in tape, floppy disk, optical disc, or other media for backup or disaster recovery shall be searched for or produced (and need not be preserved) unless good cause for the production can be shown, and further subject to the producing party's claim of undue burden or cost. The Parties shall meet and confer as to good cause on this issue.

d. Limitations on restoration of electronically-stored information

The Parties have agreed that neither party shall be obligated to preserve, search, or restore backup data storage media legacy systems, and sources requiring computer forensics to access. The Parties reserve the right to request searches of such backup data storage media, and to meet and confer in good faith regarding such requests. The Parties also reserve their respective rights to object to any such request at the time it is made.

e. Limitations on discovery of expert-related hearing preparation materials

See Joint Discovery Statement, response to Question 3(h).

IX. STATUS OF ANY SETTLEMENT DISCUSSIONS

Since the filing of the Complaint in this Investigation, the Parties have not engaged in any settlement discussions to resolve this Investigation.

X. STATUS OF ANY LITIGATION THAT MAY AFFECT ANY ISSUE IN THIS INVESTIGATION

Complainant is involved in the following related litigation involving the Asserted Patents against Respondents, which was filed concurrently with the ITC Complaint:

- *GlobalFoundries U.S. Inc. v. Tower Semiconductor Ltd. et al.*, Case No. 7:26-cv-00108 (W.D. Tex.). As this case was filed contemporaneously with the complaint in this Investigation, no substantive developments have yet occurred.

- *GlobalFoundries U.S. Inc. v. Tower Semiconductor Ltd. et al.*, Case No. 7:26-cv-00109 (W.D. Tex.). This case involves different Asserted Patents, but the same Parties and similar Accused Processes and Accused Products. No substantive developments have occurred.

XI. STATUS OF ANY PROCEEDINGS (INCLUDING REEXAMINATIONS) BEFORE THE U.S. PATENT AND TRADEMARK OFFICE

There are no proceedings involving the Asserted Patents currently before the U.S. Patent and Trademark Office.

XII. PROPOSAL FOR ANY MODIFICATIONS TO THE PROTECTIVE ORDER NOW IN EFFECT FOR THIS INVESTIGATION

The Parties will work diligently to jointly propose modifications to the Protective Order to provide heightened protections and restricted access for highly sensitive confidential source code material that is likely to be produced in this Investigation. The Parties will meet and confer and move to amend the Protective Order to include these heightened protections.

XIII. POSITION AS TO TARGET DATE

A. Complainant's Position

Complainant seeks a 16-month target date in this Investigation consistent with Section 337's directive to "conclude any such investigation and make its determination under this section at the earliest practicable time." 19 U.S.C. § 1337(b)(1). For many years, sixteen months has been considered the norm for completing a Section 337 investigation, absent unusual or complicating circumstances. Such circumstances are absent from this investigation. While this Investigation involves six patents, the patents do not relate to six distinct kinds of technologies. Indeed, four of the asserted patents (the '235, '425, '546 and '167 patents) all relate to transistor contacts technology. In addition, the accused technologies come from only a single respondent group, rather than the multiple respondent groups typically presented in a Section 337 investigation.

Given the relatedness of the asserted technologies and the fact that only a single respondent group is involved, discovery and presentation of the evidence in this investigation should be unusually streamlined and efficient. A 16-month target date for the resolution of this Investigation is, therefore, appropriate and consistent with similarly situated Investigations over which this CALJ has presided. *See, e.g., Certain Dental Burs and Kits Thereof*, Inv. No. 337-TA-1479, Order No. 4 (Feb. 4, 2026) (two patents and more than ten respondents); *Certain Child Car Seats*, Inv. No. 337-TA-1459, Order No. 5 (Sept. 16, 2025) (two patents and five respondents); *Certain Shapewear Garments*, Inv. No. 337-TA-1436, Order No. 5 (Feb. 27, 2025) (six patents and six respondents); *Certain Composite Intermediate Bulk Containers*, Inv. No. 337-TA-1434, Order No. 4 (Feb. 10, 2025) (six patents and four respondents).

Therefore, the issues are not sufficiently complex to warrant a target date longer than 16 months. With six patents and one respondent group, this Investigation is well-suited for resolution within a 16-month timeframe.

B. Respondents' Statement

Respondents respectfully submit that an 18-month target is appropriate. Complainant has filed a large and technically complex case. It has asserted more than seventy (70) claims from six (6) Asserted Patents against multiple processes and downstream products. *See* Complaint, ¶ 1.1. It has identified eight (8) Respondents, three (3) of which are foreign entities.

Discovery in this Investigation will be complex. It will require foreign discovery and is likely to require significant third-party discovery. Foreign discovery will require significant translation of both depositions and documents. Any foreign third-party discovery will need to comply with the relevant international discovery procedures, including the Hague Convention. In addition, Complainant's assertions require the production and analysis of complicated technical

documents and source code.

The technical aspects of this Investigation will also be complex. Complainant's allegations target six (6) semiconductor fabrication processes (RF, power management, BCD, logic, SiGe, and BiCMOS) and multiple downstream products. Complaint, ¶¶ 4.3–4.4. Analysis of Complainant's infringement and domestic industry allegations will involve time-intensive teardowns and review of complex technical documentation and source code. Even further, and contrary to Complainant's assertions above, Complainant's Asserted Patents are directed to discrete alleged technological inventions. Complainant's own general description of the technology of each of the Asserted Patents is instructive:

Asserted Patent	Alleged Technology
U.S. Patent No. 8,330,235	"The '235 Patent is generally directed to transistor devices with nickel silicide layers that are formulated to prevent degradation upon removal of overlying stress liners." Complaint, ¶ 5.7.
U.S. Patent No. 8,507,983	"The '983 Patent is generally directed to semiconductor devices that can be used in high-voltage applications, which commonly include lateral double-diffused (LD) transistors." Complaint, ¶ 5.11.
U.S. Patent No. 9,093,425	"The '425 Patent is generally directed to self-aligned liners formed on metal semiconductor alloy contacts." Complaint, ¶ 5.16.
U.S. Patent No. 9,865,546	"The '546 Patent is generally directed to formation of a contact in a dielectric layer over a semiconductor substrate." Complaint, ¶ 5.21.
U.S. Patent No. 10,062,748	"The '748 Patent is generally directed to 'segmented guard-ring and chip edge seals.'" Complaint, ¶ 5.25.
U.S. Patent No. 10,707,167	"The '167 Patent is generally directed to formation of a contact in a dielectric layer over a semiconductor substrate." Complaint, ¶ 5.29.

As shown by Complainant's own descriptions of the Asserted Patents, the overlap between the technology is limited.

As described above, the issues are complex and warrant an 18-month target date. There are over seventy (70) asserted claims and six (6) Asserted Patents. The issues are complex and third-party and foreign discovery is necessary. A target date of less than 18-months would be unreasonable given the breadth and complexity of the issues in this Investigation.

EXHIBIT B

EXHIBIT B

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Clark S. Cheney
Chief Administrative Law Judge**

In the Matter of

**CERTAIN SEMICONDUCTOR DEVICES,
PRODUCTS CONTAINING SAME, AND
COMPONENTS THEREOF**

Investigation No. 337-TA-1500

JOINT ELECTRONIC DISCOVERY SUBMISSION AND [PROPOSED] ORDER

One or more of the Parties to this litigation have indicated that they believe that relevant information may exist or be stored in electronic format, and that this content is potentially responsive to current and/or anticipated discovery requests. This Joint Submission and [Proposed] Order (and any subsequent orders) shall govern the electronic discovery process in this action. The Parties and the undersigned recognize that this Joint Electronic Discovery Submission and [Proposed] Order is based on facts and circumstances as they are currently known to each party, that the electronic discovery process is iterative, and that additions and modifications to this Submission may become necessary as more information becomes known to the Parties.

- I. Competence.** Counsel certify that they are sufficiently knowledgeable in matters relating to their clients' technological systems to competently discuss issues relating to electronic discovery, or have involved someone competent to address these issues on their behalf.
- II. Meet and Confer.** Counsel are required to meet and confer regarding certain matters relating to electronic discovery. Counsel hereby certify that they have met and conferred to discuss these issues prior to submission of the Discovery Statement.

Date(s) of Parties' meet-and-confer conference(s): May 13, 2026

- III. Unresolved Issues:** After the meet-and-confer conference(s) taking place on the aforementioned date(s), the following issues remain outstanding and/or require judicial intervention:

At this time, there are no issues that remain outstanding and/or require judicial intervention.

- IV. Resolved Issues:** After the meet-and-confer conference(s) taking place on the aforementioned date(s), the following issues are agreed upon and do not require judicial intervention:

A. Preservation

1. The parties have discussed the obligation to preserve potentially relevant electronically stored information and agree to the following scope and methods for preservation, including but not limited to: retention of electronic data and implementation of a data preservation plan; identification of potentially relevant data; disclosure of the programs and manner in which the data is maintained; identification of computer system(s) utilized; and identification of the individual(s) responsible for data preservation, etc.

The Parties agree to take reasonable and proportional steps to retain and preserve electronically stored information in accordance with their discovery obligations, subject to the limitations in the Joint Discovery Statement.

2. State the extent to which the parties have disclosed or have agreed to disclose the dates, contents, and/or recipients of “litigation hold” communications.

The Parties confirm they have implemented or are in the process of implementing respective litigation holds in this Investigation. The Parties agree that they need not produce “litigation hold” communications provided to employees, or disclose the dates, contents, and/or recipients of such communications.

3. The parties anticipate the need for judicial intervention regarding the following issues concerning the duty to preserve, the scope, or the method(s) of preserving electronically stored information:

At this time, the Parties do not anticipate the need for judicial intervention regarding the duty to preserve, the scope, or the method(s) of preserving electronically stored information.

B. Search and Review

1. The parties have discussed methodologies or protocols for the search and review of electronically stored information, as well as the disclosure of techniques to be used. Some of the approaches that may be considered include: the use and exchange of keyword search lists, “hit reports,” and/or responsiveness rates; concept search; machine learning, or other advanced analytical tools; limitations on the fields or file types to be searched; date restrictions; limitations on whether back-up, archival, legacy, or deleted

electronically stored information will be searched; testing; sampling; etc. To the extent the parties have reached agreement as to search and review methods, provide details below.

The Parties agree that their discovery obligations extend to both custodial and noncustodial sources, except for those sources specifically excluded herein. The Parties further agree that they will conduct reasonable searches of electronic files, excluding emails, of likely custodians and all shared file collections of information or documents that are likely to contain relevant, responsive, nonduplicative and non-privileged documents. The Parties agree that emails need not be searched in response to discovery requests unless good cause for the search can be shown, or, if an impasse was reached between the Parties, that leave for the search is granted by the Chief Administrative Law Judge (“CALJ”).

The Parties agree that dynamic fields of databases that are not stored or retained in the ordinary course of business and archives stored on tape, floppy disk, optical disc, computer servers, external hard drives, notebooks, personal computer hard drives, or similar media that are created primarily for back-up or disaster recovery purposes and not used in the ordinary course of business, including the sources described at Sections 4 and 8(f) of Exhibit A, need not be preserved or produced, unless good cause for production can be shown. The Parties agree to meet and confer as to good cause, undue burden or cost, and potential cost-shifting on this issue should the need for discovery into the aforementioned electronic discovery arise.

2. The parties anticipate the need for judicial intervention regarding the following issues concerning the search and review of electronically stored information:

At this time, the Parties do not anticipate the need for judicial intervention regarding the search and review of electronically stored information.

C. Production

1. Source(s) of Electronically Stored Information. The parties anticipate that discovery may occur from one or more of the following potential source(s) of electronically stored information [e.g., email, word processing documents, spreadsheets, presentations, databases, web sites, etc.]:

The Parties agree that discovery could occur from any of the following sources, subject to the limitations in the Joint Discovery Statement and objections asserted by the Parties in response to any discovery request: electronically stored documents; images; diagrams; spreadsheets; databases; word processing documents; presentations; test data and protocols; schematic and source code repositories; shared drives; and resource or project management databases.

2. Limitations on Production. The parties have discussed factors relating to the scope of production, including but not limited to: (i) number of custodians; (ii) identity of custodians; (iii) date ranges for which potentially relevant data will be drawn; (iv) locations of data; (v) timing of productions; and (vi) electronically stored information in the custody or control of non-parties. To the extent the parties have reached agreements related to any of these factors, describe below:

As noted above, the Parties agree that they will conduct reasonable searches of electronic files, excluding emails, of likely custodians and of all shared file collections of information or documents that are likely to contain relevant, responsive, nonduplicative and non-privileged documents. As appropriate, the Parties will work in good faith to reach agreements on various discovery issues, including, but not limited to, (i) number of custodians; (ii) identity of custodians; and (iii) date ranges for which potentially relevant data will be drawn.

3. Form(s) of Production:

The Parties have reached the following agreements regarding the form(s) of production:

The Parties agree that all documents produced in this action will be exchanged electronically via secure FTP or other secure file sharing and transfer service. Document productions served on the Parties will not be provided on secure physical media (*e.g.*, CD, DVD,

flash drive, or hard drive) unless electronic service is impractical. If the producing party so desires, it may encrypt the production data using an industry-acceptable encryption method. In such a case, the producing party shall provide the password to decrypt the production data separately from the FTP on which the production data is saved.

The Parties are currently discussing with their respective eDiscovery vendors the feasibility of the following proposed procedures regarding forms of production and initially propose:

- (a) Pursuant to 19 C.F.R. § 210.30(b)(2), all non-ESI documents shall be produced as they are kept in the usual course of business. Documents should be produced with the label or labels from any file folder, binder, file drawer, file box, notebook, computer disk, or other container in which the document was found.
- (b) ESI will be produced in the following format: ESI and paper documents that are produced as scanned images shall be produced as black and white Group IV single-page TIFF (300 DPI, 1 bit) with the following exceptions: (1) documents that are in color such as those containing images of marks and/or advertising should be produced as single-page color JPEGs (.JPG); and (2) certain documents identified below may be produced in native format.
 - a. Parties may produce agreed-upon ESI in native format, such as spreadsheets (*e.g.*, Excel, Google Sheets, OpenOffice, CSV, TSV, etc.) and other files that cannot be converted to TIFF (such as audio, video, CAD, and XML files). Native files should contain the Bates number of the file in the file name. In addition, native files should be accompanied by an image (TIFF) placeholder that indicates the document was provided in native format and contains the beginning Bates number and confidentiality designation. Wherever feasible,

the producing party shall include accompanying metadata in the load file. The Parties shall not remove metadata from native production; however, the Parties are not obligated to include metadata for any document that does not contain metadata in the original. Additionally, if, after reviewing production of other ESI in a non-native format, a receiving party believes that it is necessary to review a certain document or documents in native format, the Parties agree to meet and confer regarding production of discrete documents in native form, and such production will not be unreasonably withheld.

- b. The Parties agree to populate and produce the following metadata fields: BEGBATES, ENDBATES, BEGATTACH, ENDATTACH, CONFIDENTIALITY, AUTHOR, CUSTODIAN, PAGE COUNT, HASH, FILE SIZE, FILE EXTENSION, NATIVE LINK, REDACTED, TEXT, VOLUME, AND DUPLICATE CUSTODIANS (or the equivalent thereof for each of the foregoing). The Parties further agree to produce the following metadata fields to the extent they are available and can be automatically extracted from a document: ALL CUSTODIANS, DATE CREATED, DATE LAST MODIFIED, DOCTYPE, EXTENSION, FULLPATH, IS EMBEDDED, HAS EMBEDDED, TEXTLINK, TIME CREATED, TIME LAST MODIFIED, FILE NAME, DIRECTORY/PATH.
- c. The Parties do not currently anticipate engaging in email discovery. However, the Parties agree that to the extent that email is produced, the producing party is required to produce the metadata in the From/Author, To/Recipient(s), CC, BCC, Email Date Sent, Email Time Sent, and Email Subject fields if available.

- d. The Parties are not required to preserve metadata fields that are frequently updated in the ordinary course of business, such as last-opened dates.
- e. The Parties will make reasonable efforts to identify any potentially relevant ESI that is password protected or encrypted and undertake reasonable and proportional efforts to remove those passwords in order for the documents to be searched and/or reviewed. The Parties are not required to provide information on passwords obtained or the manner with which password protected or encrypted files were made accessible.
- f. To the extent reasonably practicable, all ESI shall be processed with a single time zone, Coordinated Universal Time (UTC), and a date and time setting that is consistent across all Parties' productions.
- g. Production folders should be delivered as follows and be restricted to 1,000 files per subfolder: DATA; IMAGES; NATIVES; TEXT.
- h. Metadata load files should be encoded in Unicode and provided in Concordance delimiters and format (.DAT):

Value	Character	ASCII Number
Column	¶	20
Quote	”	254
Newline	®	174
Multi-Value (Do not follow with space)	;	59
Nested Value	\	92

- i. The first row of each metadata load file should contain the field names requested in the attached table or as specified in the ESI order or agency specifications. All requested fields should be present in the metadata load file regardless of whether data exists. Field order must remain

consistent in subsequent productions.

- ii. Date & Time format should be MM/DD/YYYY HH:MM (*e.g.*, 06/30/2009 13:30), unless otherwise specified to be provided as separate fields. If date and time fields are to be provided separately, date format should be MM/DD/YYYY and time format should be HH:MM.

The Parties agree that this Order does not govern the format for the production of Source Code (to be defined in the Supplemental Protective Order), which shall be produced pursuant to the Supplemental Protective Order, and any amendments thereto.

- a. **Please specify any exceptions to the form(s) of production indicated above (*e.g.*, word processing documents in TIFF with load files, but spreadsheets in native form):**

At this time, the Parties have not identified or agreed to exceptions to the forms of production above not already described in Section 3.

- b. **The parties anticipate the need for judicial intervention regarding the following issues concerning the form(s) of production:**

At this time, the Parties have not identified issues requiring judicial intervention regarding the form(s) of production.

4. **Privileged Material Identification.** The parties have agreed to the following method(s) for the identification (including the logging, if any, or alternatively, the disclosure of the number of documents withheld), and the redaction of privileged documents:

At this time, the Parties are in the process of discussing restrictions with respect to the scope and timing of the Parties' privilege logs to see if an agreement can be reached. The parties have agreed that communications between a Party and its outside or in-house counsel after the filing of the Complaint need not be included on a privilege log.

5. Cost of Production. The parties have analyzed their client's data repositories and have estimated the costs associated with the production of electronically stored information. The factors and components underlying these costs are estimated as follows:

- a. **Costs**

At this time, the Parties are evaluating the costs associated with the production of electronically stored information. The factors and components underlying these costs include the location where documents are stored and must be collected, the volume of data to be produced, the format of the data to be produced, and the number of custodians.

- b. **Cost Allocation. The parties have considered cost-shifting or cost-sharing and have reached the following agreements, if any:**

The Parties agree that each party will bear its own costs. However, the Parties reserve the right to seek cost-shifting when appropriate under the Commission Rules and subject to approval by the CALJ or the Commission, as appropriate.

- c. **Cost Savings. The parties have considered cost-saving measures, such as the use of a common electronic discovery vendor or a shared document repository, and have reached the following agreements, if any:**

At this time, the Parties have not yet identified cost-saving measures that are appropriate in this Investigation.

6. The parties anticipate the need for judicial intervention regarding the following issues concerning the production of electronically stored information:

At this time, the Parties have not identified issues requiring judicial intervention regarding the production of electronically stored information.

- D. Other Issues:

At this time, the Parties have not identified any other issues for discussion or judicial intervention.

The preceding constitutes the agreement(s) reached and existing disputes (if any) between the Parties to certain matters concerning electronic discovery as of this date. To the extent additional agreements are reached, modifications are necessary, or disputes are identified, they will be outlined in subsequent submissions or agreements and promptly presented to the undersigned for consideration.

Dated: May 14, 2026

Respectfully submitted,

/s/ Bert C. Reiser

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